

14	Valdivia v. Action Resource Management, Inc. 2023-01361792	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$75,348 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$22,604.00 for attorneys' fees (not to exceed); \$12,000.00 for attorneys' costs (not to exceed); \$6,400.00 for settlement administration fees (not to exceed); and \$5,000.00 total PAGA penalties (\$3,750.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto, notice packet (in English and Spanish)). The notice and objection form should be revised as follows: - The second paragraph on page 1 of the notice (commencing with "Pursuant to the Order . . .") should be removed; - In the first sentence of the fifth paragraph on page 1 of the notice, a period should be inserted after "p" in "2:00 p.m."; - In the first sentence of the second paragraph of section II of the notice, the word "denies" should be replaced with "deny"; - In the first sentence of the first paragraph of section III of the notice, the word "Class" should be removed after "the" and before "Settlement"; - In the last sentence of the third paragraph of section III of the notice the phrase "and/or pay periods" should be inserted after "workweeks" and before "for which"; - In the first sentence of the third paragraph of the notice under "Option 3" on page 4, the word "either" should be removed after "by" and before "mail"; - The fourth paragraph of the notice under "Option 3" (the one-sentence paragraph) should be removed; - In the first full sentence in the partial paragraph at the top of page 5 of the notice, the word "Complaint" should be removed after "Plaintiff's" and before "letter"; - In the bolded, all caps sentence at the top of the objection form, the following words should be removed: (i) "OR DELIVER" and (ii) "BACK"; and
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		j. In the last paragraph of the objection form above the class member's name line, the word "Fairness" should be replaced with "Approval." The final approval hearing is scheduled for <u>January 14, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
15 2:30 p.m.	Davis v. Insight Psychology and Addiction, Inc. 2023-01319920	<u>Attorneys Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP's Motion to be Relieved as Counsel</u> Attorneys Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP move to be relieved as counsel for defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness. California Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving parties and finds that Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP have complied with the requirements of Rule 3.1362. The motion to be relieved as counsel is granted. The court's order shall become effective upon the filing of a proof of service showing service of the order on defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness. Defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness is a corporation. This entity cannot represent itself. <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 n.5. Defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness must obtain representation or risk forfeiting important rights through nonrepresentation. <i>Id.</i> Defendant Insight Psychology and Addiction, Inc d/b/a Nsight Psychology & Addiction and/or Nsight Mental Health & Wellness is ordered to obtain counsel and file evidence thereof with the court by September 24, 2026. The moving parties, Attorneys Mollie M. Burks, Sat Sang S. Khalsa and Gordon Rees Scully Mansukhani LLP, shall give notice of the court's order.